

NEWS & COMMENTARY

Beware of Other License Plate Surveillance Companies Besides Flock

Flock deserves the heat it's getting, but switching to another provider won't necessarily improve anything



Jay Stanley, ACLU Speech, Privacy, and Technology Project

Tracking ALPR Cameras News Series

August 25, 2026

[Subscribe to the Free Future Newsletter](#)

[Or get immediate notifications of new posts via Substack](#)

[Free Future home](#)

There's a nationwide rebellion against license plate readers underway, and the company Flock is the focus. That's natural, because the company has "[essentially dominated](#) license plate recognition across the United States," as industry analyst IPVM put it. But Flock is far from the only vendor, and with Flock rightly receiving most of the heat, it's important to realize that its competitors aren't so great either, and that simply replacing Flock surveillance with another company's surveillance won't necessarily solve any of the privacy and other civil liberties problems posed by this mass surveillance technology.

We have covered Flock in depth, including in this 2022 [white paper](#) and in numerous [blog posts](#) since. A pioneer of centralizing ALPR data through the cloud, the company runs a vast "National Lookup" searchable nationwide database of license plate and other photographic data of vehicles — an inherently authoritarian infrastructure that has, among other things, [already been used](#) to help ICE in its human rights-violating deportation drive, and to try to track and investigate a Texas woman who had an abortion.

Aside from being dominant in the domestic police ALPR market, Flock is also alienating many communities because of its [lack of truthfulness](#) and [erratic](#) and [immature](#) public statements. Unlike its biggest competitors, which are public companies, Flock's private investors include tech billionaire venture capital firms such as Andreessen Horowitz, which also funds other surveillance companies like [Anduril](#) and [Skydio](#), and [explicitly aims to invest in building](#) domestic law enforcement surveillance capabilities. These are legitimate reasons to avoid doing business with a company.

At the same time, communities can't simply assume that their residents will be better off from a privacy and civil liberties perspective by dropping Flock and replacing it with another ALPR provider, as some customers have done. They should ask hard questions about whether they really want to

create that kind of a system, and if they do, ensure it doesn't function as a mass surveillance system. (The ACLU has created a [toolkit](#) to help people do just that in their communities.)

Motorola Solutions (aka Vigilant)

One of Flock's most significant competitors is Motorola. This company, which has been expanding its police technology offerings through an aggressive acquisition strategy in recent years, offers a nationwide law enforcement data sharing system similar to Flock's called the National Vehicle Location Service (NVLS), operated by Motorola unit Vigilant Solutions. In addition to collecting data from law enforcement clients' cameras, it also runs a large separate commercial ALPR unit that makes deals for tow trucks and other fleet vehicles to carry cameras and collect data for Motorola as they drive around, [amassing](#) billions of plate reads (a claimed 500 million [monthly](#), subject to no apparent data retention policy). Known as the Digital Recognition Network (DRN), that unit sells its data for commercial purposes but also makes it [available](#) to its law enforcement customers for an extra charge. Motorola [tells](#) agencies they can have "access to billions of detections beyond your own,"

Some communities may want to take into account the fact that this uniquely powerful commercial plate-scanning infrastructure is marketed to private companies, including auto financiers and insurers, and not only for repossession but also for "risk assessment" purposes — even though [risk scores](#) have been shown to [disproportionately harm](#) low-income and other marginalized drivers.

(Note that following a 2011 corporate breakup of the classic American electronics company [Motorola Inc.](#), the company Motorola Solutions being discussed here is separate from Motorola Mobility, a smartphone [company](#) owned by the Chinese company Lenovo.)

Axon

Formerly known as Taser, Axon has built its business around that police pain-delivery device, as well as body cameras, where it dominates the market, and its cloud data storage service Evidence.com. Like Flock and Motorola, the company is seeking to become a broad "operating system of police departments," which has ominous implications we detailed in a recent [white paper](#). Axon has been aggressively expanding its law enforcement products, including by pushing [premature](#) uses of AI. Many Flock customers already have contracts with Axon for body cameras and other products, making a switch to Axon all the easier — especially since Axon is pursuing an explicit [strategy](#) of bundling multiple technologies and services together in long-term contracts. That raises significant [concerns](#) over platform dependence and lock-in.

As part of these strategies, Axon is looking to build up its ALPR offerings — and the market for them, which (as the ACLU has seen firsthand) has included lobbying against state ALPR regulations and local surveillance tech transparency [laws](#). The company began selling ALPR services in 2021 [through](#) its in-vehicle "Axon Fleet 3" dashcam and in-car camera product, and then in 2025 [announced](#) new fixed-camera ALPR products, including a "smart streetlight" that attaches to existing poles and power sources. Both products [feature](#) AI vehicle recognition. Axon doesn't impose any [data-retention](#) limits on its customers and lets police departments decide how long they want their data to sit on Axon's servers. It does have a default policy of 30 days, but that's only a default.

All three companies offer products that blur the lines between ALPR and live video surveillance. "You no longer have to make tradeoffs when it comes to ALPR deployments — license plate recognition or livestreaming," Axon [boasts](#).

It's not clear whether Axon has any formal arrangements with ICE or other DHS agencies to access plate-read data collected by Axon devices, though the company does have a number of contracts with

the federal government, [including](#) an announced \$220 million five-year deal to buy the company’s problematic Taser devices. That does not have the same privacy implications as sharing data on people’s locations with ICE, though supplying that agency and its often lawless and abusive officers with Tasers may violate the company’s responsibilities under internationally recognized [human rights standards](#), and generally carries a moral stench.

Axon is [explicitly positioning](#) itself as a “more ethical” alternative to Flock. As the security industry analysts at IPVM put it in a headline, “Axon LPR Business Surges As Flock Is Embattled.” Axon has a particular rivalry with Flock over becoming a broad provider of police surveillance and data services — the “operating system of police departments” (with Motorola also in the running in a less high-profile way). I looked at that race and its implications in a June 2026 [white paper](#).

Summary of selected ALPR provider policies							
Company	Nation-wide sharing system?	Vendor-enforced retention period?	Default retention period?	Contracts w/ DHS agencies?	Local non-cloud option?	Free-text AI image search offered?	Suspicion generation offered?
Flock	Yes	1 year	7 days	No	No	Yes	Yes
Motorola	Yes	None	None	Yes	No	Yes	Yes
Axon	No	None	30 days	Yes	Yes	No	No
Typical smaller vendor	No	None	None	No	Yes	No	Many

NOTE: Many entries reflect the best information we were able to find on companies’ sites, and on companies’ unverified claims

Other companies

There are a lot of other ALPR vendors. The DHS Science and Technology division, in a rudimentary Consumer Reports-style [roundup](#) for police, lists 16 different providers. In February, IPVM [performed](#) tests of ALPR accuracy and included nine products; another analyst [identifies](#) 46 vendors in the ALPR space.

One provider, Rekor, provides ALPR services to the Westchester County, NY police, which is the [subject](#) of a class action [lawsuit](#) by the New York Civil Liberties Union and other groups. Rekor offers rich vehicle AI searches as well as video clips of vehicle captures. It’s unclear whether the company has a current contract with ICE, but documents obtained by the Associated Press in 2025 [revealed](#) that CBP had had access to data from Flock, Motorola, and Rekor. Documents obtained by the Guardian also [show](#) that Rekor’s client, the Westchester County PD, has shared data with ICE; it’s not clear whether that Rekor facilitated or continues to facilitate that sharing. Rekor has a nationwide data [sharing program](#) like Flock and Motorola, though it is much smaller at this time. Unlike Flock and Motorola, the company [allows](#) for local software installation and data processing by clients.

The provider Leonardo (selling an ALPR product called ELSAG) also [allows](#) for its system to be run on local hardware. ELSAG has attracted attention lately due to a very [problematic capability](#) that it advertises: the tracking not only of license plates but also of devices through their Bluetooth and other wireless emissions. It reads unique IDs broadcast not only by phones but also by tablets, laptops, and any other wireless-capable objects that might happen to be in a car, as well as wireless components of the car itself, such as audio-video systems and the Tire Pressure Monitoring Systems that all cars are now required to have, which use Bluetooth. That’s an extremely powerful capability that in many cases will supercharge the tracking of individual people including passengers — and we should hope this “innovation” doesn’t spread to other vendors.

Most other ALPR vendors are small, and based on a non-systematic review of a sampling, often don't offer some of the more troubling capabilities that their larger competitors do — though there are exceptions (such as the many advertising cutting-edge AI, for example).

The big network-effects advantage that Flock and Motorola have over their smaller competitors — the size of their customer/data sets — gets erased if communities decide to ban nationwide sharing. If you're collecting and storing your data locally and generally keeping things simple, the smallest ALPR vendor out there may serve just as well as the bigger names. Companies like Flock, Axon, and Motorola are competing by offering to make law enforcement ever-more powerful and all-seeing; good civil liberties protections will have the effect of making ALPR devices and services much more commodified and interchangeable — something tech companies hate but which serves the public better.

Civil liberties differences

There are differences among the leading US license plate reader companies on the dimensions important to privacy and other civil liberties.

- **Nationwide sharing.** Nationwide sharing of the kind that Flock provides significantly increases the scope and power of ALPR surveillance compared to purely local surveillance carried out by a particular police department. Preventing such sharing has been one of our [primary recommendations](#) for communities. Flock [says](#) 75% of its [claimed](#) 5,000 police customers [participate](#) in the company's National Lookup network, making it an extremely powerful surveillance machine. Motorola seems to have fewer police clients than Flock but — in part due to its commercial DNR network — boasts of an enormous number of monthly plate reads that can be accessed as part of its NVLS sharing service. It's hard to find data on their relative market shares, but these networks give their operators an enormous business advantage over smaller competitors among departments that want the nationwide search capability they offer. Axon has an ALPR data sharing [function](#) built into its search tool, but that appears to require an explicit department-by-department agreement to engage in such sharing.
- **Retention periods.** How long police departments hold on to the potentially sensitive data about ordinary people's lives that license scanners collect is a key civil liberties metric. Where police use ALPR we recommend a rule like New Hampshire's, in which plate reads that don't result in a watch list "hit" must be deleted within three minutes, or failing that, a retention period of no more than 48 hours. But the leading vendors all allow their customers to retain their ALPR data for as long as they like, with the exception of Flock, which [says](#) it imposes a one-year limit, and requires "approval from an elected official and/or a governing body" to retain data for more than the company's 7-day default retention period. Otherwise, default retention periods amount to no more than suggestions. With a network as large as Flock's (a [claimed](#) 20 billion monthly plate scans), a 7-day retention period (which the company [announced](#) with great fanfare in an attempt to quiet opposition) still gives police departments far too much mass-surveillance power over people not suspected of wrongdoing. In the absence of vendor-imposed limits, customers may decide on very long retention periods; the NYPD, for example (which uses Motorola), [retains](#) its ALPR data for five years.
- **Federal sharing.** Flock says it doesn't have any contracts with ICE or other federal agencies, though it has become clear that those agencies can access the company's ALPR database through [proxies](#) in local departments. (In August 2025, Flock was [discovered](#) to have been sharing data with CBP through an undisclosed pilot project, since [ended](#).) At the end of the day, once data about the lives of ordinary people in a community is collected, it's very hard to control. Motorola, however, has a [contract with ICE](#) ([through](#) Thompson-Reuters) permitting that agency to directly

search Motorola's surveillance database, so if your police department is contributing to that, you *know* your data is going to ICE, no intermediaries required.

- **Cloud and local storage and control.** In addition to all the questions raised by license plate surveillance, there are serious questions about private company access to that data, as we outlined in a recent [white paper](#). Local storage also offers more local control — if the data your local department collects is stored on its own computers and not accessible by the vendor, for example, then the vendor's policy on sharing with ICE is no longer an issue. Local storage of data on police department's own computers used to be common with ALPR systems, but today, with the trend toward cloud services, neither Flock nor Motorola allow their clients to store their data locally. Both claim to allow their customers "control" over their data, but that is a governance claim and not an infrastructure claim, and ultimately whoever holds the data truly controls it (unless it's end-to-end encrypted). Axon does [offer](#) a local storage solution, as do some other competitors, as discussed below.
- **AI imagery search.** Since its inception, basic license plate detection has collected license plate number data, snapshot stills of plates, and place/time data, but companies are now promising police departments new powers by pushing far beyond that. We recommend that communities require any ALPR vendors to stick to the basics. All the companies offer analysis of vehicle attributes, and some also offer more powerful free-form AI search of stored video or still imagery. Flock touts its ability to let officers search not just for license plates, but also for make, model, and other vehicle attributes and distinguishing characteristics, and to use free text AI searches to unleash modern video analytics not just for vehicle searches but also for people appearing in captured imagery. Motorola also collects other data about vehicles (but not people), [including](#) "accessories, damage, and promotional writing or bumper stickers," and [offers](#) plain-language [AI search](#) of the imagery in its database. Axon offers structured [searches](#) for various vehicle attributes but doesn't have the same level of wide-ranging AI search (except for within case files). It's likely that whatever particular companies offer now, however, many or all will eventually offer such capabilities.
- **Suspicion generation.** Here Flock is definitely the worst, [touting](#) the ability to "detect patterns of suspicious activity across cities and states," and generally opening up unprecedented new possibilities for fishing expeditions by allowing [in-depth AI searches](#) through data on people's movements. Motorola also crosses that key line from investigative aids to [suspicion generation](#); touting its ability to "reveal patterns, trends and associations which generate leads." It doesn't seem that its system aims to facilitate a true cold search for movement and association patterns to the extent of Flock. Axon doesn't appear to offer suspicion generation capabilities at this time. But again, the various vendors' AI offerings may change fast.
- **Use of NCIC database.** One key civil liberties protection around plate scanning is that the watch lists used by law enforcement be subject to checks and balances. Flock's service runs plate scans against the FBI's criminal database, the NCIC. It is murky exactly how this access works — the FBI refused to explain it to the author of an IPVM [research report](#) on the subject — but as we [have explained](#), it's problematic for a number of reasons having to do with accuracy, due process, and timely updating of listings of which cars are flagged. In addition, one component of the NCIC is an "Immigration Violator" hotlist maintained by ICE, which can be a [backdoor way](#) of enabling local police to cooperate with the Trump Administration's deportation drive. In addition to Flock, [Axon](#) can also run their hits against this database. I wasn't able to confirm whether Motorola also allows that functionality. At least [some](#) of the smaller companies appear to [offer](#) it.

Another potential check on the power of ALPR systems is use limitations. Flock has [in the past](#) promised to restrict "impermissible" searches, such as abortion-related searches in states like Illinois that ban the sharing of abortion data. More recently, the company [announced](#) as part of its "updates" meant to mute criticism that it would let local departments decide what types of offenses other Flock

customers can search their data for. The problem is that there is no effective enforcement mechanism behind these measures; they rely on an honor system in which police officers accurately and honestly describe the purpose of their search — something that [experience](#) has [shown](#) to be [ineffective](#).

What matters most is not maximum capabilities but actual deployment contracts

As we have seen, there are significant differences among providers in how license plate scanning is done. But a community can often reach a contract with providers that restricts the capabilities that are deployed. For several [years](#) we have [urged](#) cities to do this. Just because Flock and Motorola do nationwide sharing and AI search doesn't mean that a police department needs to use (or a city council needs to allow its police department to use) such capabilities. Defaults are important, but for a jurisdiction that is determined to deploy ALPR, the most important differences among companies that community members should look at are what those vendors will allow localities to control.

Community members attuned to privacy and civil liberties should also push city councils — or state legislatures — to put limits into law through general ordinances that remain in effect even as contracts and vendors come and go over the years. The differences among vendors in how they provide ALPR services are governed by corporate strategy rather than law, which means they can be changed in an instant by the companies. Communities should not gain too much comfort from what companies are and are not doing right now, but instead keep their eye on the longer game by putting protections into law.

When Denver decided to [discontinue](#) its contract with Flock earlier this year, it ([hastily and unwisely](#)) switched to a new vendor (Axon). But what mattered more than the change in vendor was the change in how ALPR was operated; the new contract shortened the data retention period (from 30 days to a still-too-long 21 days), restricted data sharing, and banned federal access to Denverites' data. Denver probably could have obtained those same terms with any vendor.

Overall, the default behavior of a company's ALPR offerings becomes less important, and the control it gives customers becomes more important.

- **Choosing a short retention period.** Motorola and Axon allow a customer to retain data for as long as they want, and despite its new suggestion of 7 days, down from 30, Flock only hard-caps retention at a year. But customers of all three companies (and, my sense is, their smaller competitors') can still set very short data retention limits as we recommend.
- **Disallow nationwide sharing.** Flock and Motorola, which both offer nationwide data sharing, both allow customers to not participate (but often cajole them into participating, because it is in the companies' financial interest for them to do so). Note, however, that vendors also can allow regional, statewide, or department-by-department sharing, so access to your community's data can be fairly broad even without nationwide sharing. Axon doesn't offer nationwide sharing but does have built-in functionality for case-by-case sharing among departments. The more broadly data is shared, the more points there are for ICE, CBP, or anyone else to access it through a cooperative department or officer.
- **Choosing local data storage.** On the other hand, when it comes to local data storage, a Flock or Motorola customer doesn't have the option to not use their cloud services so far as we can tell, whereas customers of Axon, Rekor, and other vendors do.
- **Decline AI analytics.** It appears that police department customers can't opt out of basic vehicle attribution recognition capabilities offered by all the biggest companies. The freeform AI searches of still and video data that Flock offers [appear](#) to be a separate product that a customer could

simply decline to pay for. It's less clear whether customers can opt out with Motorola, but the company may be willing to agree to disable that functionality to make a sale.

- **Decline suspicion-generating AI.** As far as we can tell, use of Flock and Motorola's AI algorithmic suspicion-generation is not required, so in theory a municipality could insist through an ordinance and in vendor contracts that such a capability not be made available to a client police department.

The bottom line

Overall, a comparative look at the ALPR marketplace through a civil liberties lens yields several takeaways:

- If a jurisdiction decides to allow license scanners to be installed, how that system operates is more important than which vendor provides it, though considerations about the overall ethics of a company are certainly worth taking into account.
- When looking at vendors, the most important question is whether they provide the *option* to impose restrictions that protect privacy and civil liberties.
- If a community doesn't impose strong conditions such as data retention limits, switching from Flock to another ALPR provider could leave residents' civil liberties in equally bad or even worse shape.
- Communities should address ALPR policies democratically and they should impose them through legal limits on license scanning rather than through internal police department policies or vendor contracts that will be repeatedly re-negotiated as years pass.

Again, the most civil liberties protective step that a municipality can take is to spurn license plate scanners altogether. But where that's not possible, community members should not think that simply abandoning Flock for another vendor will necessarily make things better.

Related Issues

[Privacy & Technology](#)

[Automatic License Plate Readers](#)

[Location Tracking](#)

Related Content

Press Release

Sep 2026



Free Speech Privacy & Technology

ACLU, ACLU of D.C., and National Press Photographers Association Tell Court that Blocking Drone Photography of DHS Operations Violates First Amendment

WASHINGTON – Today, the American Civil Liberties Union (ACLU), the ACLU of D.C., and the National Press Photographers Association filed an amicus brief in support of a Minnesota photojournalist's lawsuit challenging the Federal Aviation Administration's (FAA) Temporary Flight Restrictions (TFR). Earlier this year, as ICE was carrying out brutal immigration raids across the country, the FAA dramatically expanded restrictions on drone flights, banning such flights over any Department of Homeland Security (DHS) facility or "mobile asset," which included any DHS vehicle. As the amicus explains, the TFR made it functionally impossible for journalists to use drones to gather news in any area where immigration enforcement agents were deployed, violating the First Amendment right to record public officials performing their duties in public. "The FAA's restriction forced journalists reporting on immigration enforcement activity to ground their drones or risk criminal charges. This choice is unacceptable, unconstitutional, and runs roughshod over the First Amendment right to gather news," said Scarlet Kim, senior staff attorney with ACLU's Speech, Privacy, and Technology Project. The brief explains that the FAA's restriction was not about public safety or national security. Journalists were previously already advised and generally adhered to avoiding airspace around sensitive locations, such as active military bases, airports, and aircraft carriers. Moreover, press drones weren't interfering with official activity or putting anyone at risk by capturing immigration enforcement activity unfolding in public. "Under Trump, even the Federal Aviation Administration has become a political censor," said Arthur Spitzer, senior counsel at ACLU-D.C. "The agency should be protecting the safety of the flying public, not protecting ICE from unfavorable news coverage." The brief further explains that journalists were effectively being censored beyond their DHS coverage, since the unpredictability of where any DHS vehicle may be traveling made it functionally impossible for journalists to use drones for any newsgathering in areas where immigration enforcement agents were deployed without putting themselves at risk of severe legal and financial penalties. "Drones have become essential, safe, and economical tools for documenting government activity and other matters of public concern. By creating an unpredictable moving exclusion zone around DHS assets, the FAA forced visual journalists to choose between abandoning lawful newsgathering and risking severe penalties," said Mickey H. Osterreicher, general counsel for the National Press Photographers Association. "Safety restrictions must be narrowly tailored and consistent with the First Amendment, especially when they limit the

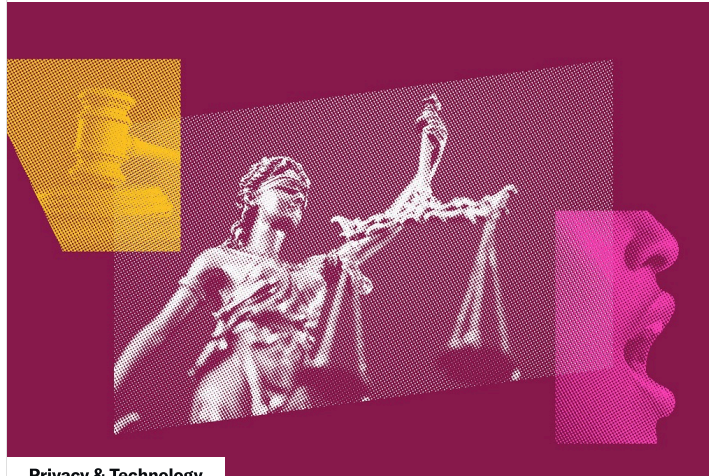
public's ability to observe government officials performing their duties.”

Court Case: Levine v. FAA

Affiliate: Washington, D.C.

New Hampshire

Sep 2026



Privacy & Technology

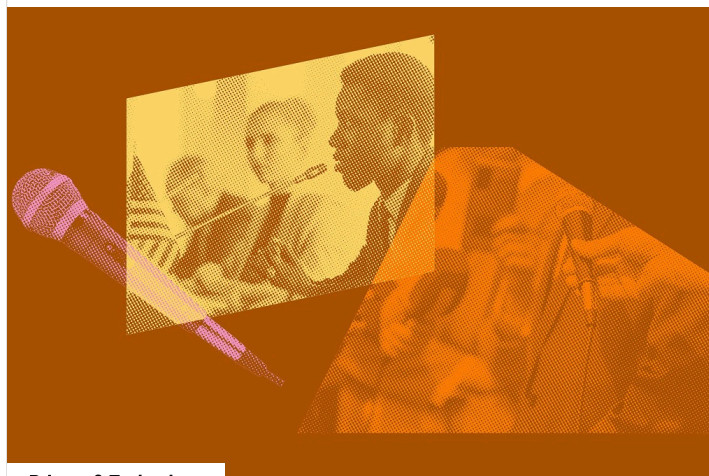
LaValley v. Concord Housing and Redevelopment Authority

On September 2, 2026, the ACLU, ACLU of New Hampshire and New Hampshire Legal Assistance brought a class action lawsuit against the Concord Housing and Redevelopment Authority for installing and operating surveillance devices in tenants' apartments. The devices collected hundreds of millions of data points recording movement, sound levels, and other information from inside tenants' homes.

Status: Ongoing

Press Release

Sep 2026



Privacy & Technology

ACLU and New Hampshire Legal Assistance Sue Housing Authority Over Electronic Surveillance of Residents

CONCORD, N.H. — Today, residents of housing developments owned and maintained by the Concord Housing and Redevelopment Authority (CHRA) in New Hampshire sued to block CHRA from harvesting sweeping data about tenants' activity patterns in their homes through surveillance devices purchased from a private company, Minut Inc. In the fall of 2024, CHRA began installing Minut

Monitor devices inside people's apartments across the properties it manages, providing government employees with real-time, remote access to granular data about activity within tenants' homes. These devices are capable of collecting data such as the decibel level of detected noise, motion detector readings showing physical movement of residents and guests, smoke and humidity levels, and scans for iOS signals, which can estimate how many people are nearby. "People should feel secure in their homes—not watched, judged, or punished by technology they never asked for. These devices change how tenants interact with their own apartments, turning everyday living into a source of fear," said Christopher Schott, director of New Hampshire Legal Assistance's Fair Housing Project. "No one should worry that an assistance animal, a television, or other routine household sound could trigger penalties simply for living their life." Taken together, the information provided by Minut Monitors can create a mosaic of detail about peoples' lives, revealing when they wake up, when they come and go from their home, and more. Minut Monitors near tenants' beds can even potentially track sound and motion data that could reflect intimate acts. Much of the data is logged on a minute-by-minute basis. For example, each Minut Monitor logs sound-level readings approximately every single minute, up to 1,440 times a day. For one tenant, the Minut Monitor logged more than 140,000 motion events within a seven-month period for just a single unit - an average of more than 700 motion events per day. All told, CHRA has amassed hundreds of millions of data points from within tenants' apartments. The data is stored indefinitely and available to CHRA employees on demand. The class action lawsuit was filed by New Hampshire Legal Assistance, the American Civil Liberties Union of New Hampshire, and the American Civil Liberties Union. As the complaint explains, this invasion of privacy in individuals' homes by a government agency is unacceptable and violates two provisions of the New Hampshire Constitution, Article 19 and Article 2-b. Article 19 prohibits unreasonable searches by the government. Article 2-b, which was added to the New Hampshire Constitution by referendum in 2018, provides that "an individual's right to live free from governmental intrusion in private or personal information is natural, essential, and inherent." "We're suing because everyone deserves privacy in their own home. The government shouldn't get to know if you are getting up in the middle of the night to use the bathroom or when your morning alarm goes off just because you live in public housing," said Maria Savarese, staff attorney at the ACLU of New Hampshire. "Our state constitution is clear: we have the right to live free from government surveillance and intrusion in our homes." Furthermore, CHRA's implementation of Minut Monitors over the past two years has been marked by severe lack of transparency and a dismissal of tenants' objections. Throughout the installation process, significant information was left out of notices to tenants, painting the technology as much less invasive and far-reaching than the Minut Monitors' actual capabilities. For example, CHRA did not disclose the occupancy and motion sensor capabilities of the devices, only disclosing the use of sensors for smoke, noise, temperature, and humidity detection. When residents asked outright whether the monitors placed in their homes included motion sensors, CHRA failed to directly answer the question. CHRA also omitted from their tenant communications that Minut's terms of service includes a warning about potential inaccuracies in the AI and machine learning models used to analyze and detect the presence of cigarette smoke. This is especially alarming considering that CHRA's stated purpose of installing Minut Monitors is to substantiate lease violations that can lead to eviction. When one resident asked to see the data produced from tracking her day-to-day activity, CHRA denied her request. In multiple instances, CHRA disregarded residents' concerns about the surveillance they were subjected to. Tenants are not able to opt out of this invasive surveillance, and if they attempt to remove the devices

from their units, they are subject to significant fines and have been threatened with eviction. CHRA failed to create any policy for secure data retention and destruction, despite a request to do so by its own Board of Directors, leaving Minut free to handle residents' data however it wants. Minut's data retention policy also gives the company complete authority to retain user information for any duration and purpose. CHRA did not share this policy with tenants at any point. The lawsuit also explains that far from improving tenants' housing experience, CHRA's insistence on surveillance exposes them to serious safety risks. For example, access to the data could severely endanger victims of domestic violence or stalking whose abusive former romantic partners or stalkers could learn details about their patterns of life. "A government-installed sound meter and motion sensor hovering near your bed should be the stuff of dystopian science fiction, but it is reality in Concord. Public housing residents shouldn't have to choose between becoming homeless and being subjected to constant electronic monitoring inside the privacy of their own homes," said Nathan Freed Wessler, deputy director of ACLU's Speech, Privacy, and Technology Project. "This case happens to rely on the robust protections of the New Hampshire Constitution, but landlords across the country are now on notice: subjecting your residents to this chillingly invasive surveillance will land you in court."

Court Case: LaValley v. Concord Housing and Redevelopment Authority

Affiliate: New Hampshire

News & Commentary

Sep 2026



Privacy & Technology **Criminal Law Reform**

Another Problem With AI-Assisted Police Reports: Companies Can Have Incentives to Distort Their Content

Police Companies Could Train Their AI to Hide Use of Their Products or Make Them Look Good

By: Jay Stanley

ACLU

© 2026 American Civil Liberties Union

